OurMocks

2027 CYCLE

MOCK · PRACTICE · CRACK

CUET UG

Political Science

Crises of the Constitutional Order

Official Syllabus · Politics in India Since Independence · Class 12 · CUET UG 2027 Cycle Notes

INSIDE
Concept Notes

INSIDE
Solved Examples

INSIDE
Practice MCQs + Solutions

Aligned to the latest official syllabus · Concept-first explanations

www.ourmocks.com

Syllabus Alignment

Sub-topic	Official syllabus pointer (NTA CUET(UG) Political Science syllabus 2026, the current 2027 baseline — Politics in India Since Independence)	Skills the questions test
The Prelude & Judicial Clash	Search for 'committed' bureaucracy and judiciary — the Kesavananda Bharati verdict and the supersession of judges.	Identifying the constitutional conflicts between Executive and Judiciary, economic distress, and the 1974 Railway Strike.
Gujarat & Bihar Movements	Navnirman movement in Gujarat and the Bihar movement — student agitations and Jayaprakash Narayan's call for "Total Revolution".	Tracing Morarji Desai's role in Gujarat, JP's two conditions in Bihar, and the 25 June 1975 Ramlila Maidan rally.
The Emergency (1975–77)	Emergency: context, constitutional and extra-constitutional dimensions, resistance to emergency.	Differentiating Article 352 "internal disturbance", MISA detentions, press censorship, Sanjay Gandhi's role, and the 42nd Amendment.
1977 Elections & Aftermath	1977 elections and the formation of Janata Party; rise of civil liberties organisations.	Explaining the defeat of Congress in North India, the Shah Commission, the 44th Amendment safeguards, and the emergence of PUCL/PUDR.

EXAM PATTERN

CUET UG pattern (NTA official information bulletin and syllabus, 2026 cycle — the current 2027 baseline): each subject paper carries **50 compulsory questions** in **60 minutes**, with +5 for every correct answer and −1 for every incorrect answer. This chapter is heavily tested on exact dates, constitutional articles, court cases, commission names, and the distinction between the 42nd and 44th Amendments.

The Gathering Storm: Economic Distress & the "Committed" State

The euphoric high of the 1971 Bangladesh victory evaporated rapidly. By 1973, India was gripped by acute economic distress and fierce institutional conflict between the Prime Minister and the Supreme Court.

- **Economic Headwinds (1972–1975):**
  - **The post-war burden:** Supporting 10 million refugees from East Pakistan and financing the 1971 war depleted the national treasury.
  - **The aid freeze:** The United States terminated all foreign aid and wheat shipments to India to express anger over the Bangladesh intervention.
  - **The 1973 Oil Shock:** International crude oil prices quadrupled following the Arab-Israeli war, driving an import bill crisis and severe fuel shortages.
  - **Hyper-inflation:** General price levels surged by **23% in 1973** and skyrocketed to **30% in 1974**. Food grains and essential commodities vanished from shops.
  - **Industrial paralysis:** Industrial output slumped, unemployment climbed, and the government froze salaries of civil servants, triggering nationwide labor unrest.
- **The All-India Railway Strike (May 1974):**
  - **The leadership:** Led by socialist trade unionist **George Fernandes**, the National Coordination Committee for Railwaymen's Struggle launched an indefinite strike.
  - **The demands:** Bonus payments and parity in service conditions with other public sector enterprises.
  - **The confrontation:** The strike halted the nation's transportation lifeline for **20 days**. Indira Gandhi declared the strike illegal, deployed territorial army battalions, and arrested thousands of workers without conceding demands.
- **The Clash with the Judiciary & the "Committed" Judiciary:**
  - **The ideological dispute:** The government argued that Parliamentary sovereignty and Directive Principles must override Fundamental Rights to achieve poverty reduction. The Supreme Court insisted on protecting fundamental property rights.
  - **Three landmark rulings:**
    - **Golaknath Case (1967):** Supreme Court ruled that Parliament cannot abridge Fundamental Rights.
    - **Bank Nationalisation & Privy Purses (1970):** The Court struck down both executive measures as unconstitutional violations of property rights.
    - **Kesavananda Bharati Case (24 April 1973):** A 13-judge bench ruled that Parliament can amend any part of the Constitution, but cannot alter its **"Basic Structure"**.
  - **The Supersession of Judges (April 1973):**
    - The convention was to appoint the senior-most judge of the Supreme Court as the Chief Justice of India (CJI).
    - Upon CJI S.M. Sikri's retirement, the Indira government superseded three senior judges who had ruled against it in Kesavananda Bharati: **Justice J.M. Shelat**, **Justice K.S. Hegde**, and **Justice A.N. Grover**.

- The government appointed **Justice A.N. Ray** as the new Chief Justice.
- **The doctrine of "commitment":** The ruling party openly defended this move, asserting that judges and bureaucrats must be "committed" to the social philosophy of the ruling party.

THE UMPIRE AND THE TEAM CAPTAIN

Imagine a football captain who misses a goal and then insists that the referee should be replaced by someone who shares his team's strategic philosophy. When the original referees rule against him, he demotes the three most experienced match officials and installs a junior official who promises not to blow the whistle against the captain. That was the demand for a "committed judiciary": transforming the neutral constitutional referee into an executive cheerleader.

Student Protests: Gujarat and Bihar

Popular fury against price inflation and corruption did not originate from political parties; it erupted spontaneously among university students in two key states.

- **The Gujarat "Navnirman" Movement (January–March 1974):**
  - **The spark:** In January 1974, engineering students at L.D. College in Ahmedabad launched protests against a 20% hike in hostel mess food charges.
  - **The escalation:** The protest grew into a mass anti-corruption campaign called the **Navnirman Andolan** (Reconstruction Movement) against the Congress state government led by Chimanbhai Patel.
  - **Morarji's ultimatum:** Opposition parties joined the stir. Veteran leader **Morarji Desai** announced an indefinite hunger strike demanding the dissolution of the corrupt state legislative assembly.
  - **The victory:** Facing massive street revolts and Desai's fast, the Central government dissolved the assembly in March 1974. Fresh elections were held in June 1975, where the Congress was defeated by a combined Janata front.
- **The Bihar Movement & Jayaprakash Narayan (March 1974):**
  - **The students' invitation:** In March 1974, students in Bihar organized massive demonstrations against inflation, food scarcity, and educated unemployment. They invited veteran freedom fighter and Sarvodaya leader **Jayaprakash Narayan (JP)** to lead their agitation.
  - **JP's two non-negotiable conditions:**
    - The movement must remain strictly **non-violent**.
    - The agitation must not limit itself to Bihar; it must expand into a nationwide movement for democratic regeneration.
  - **The Call for "Total Revolution" (Sampoorna Kranti):**
    - JP declared that the struggle was not merely to replace corrupt politicians, but to achieve **Total Revolution** across moral, cultural, economic, and political spheres.
    - A series of bandhs, gheraos, and strikes paralyzed government functioning across Bihar. People established parallel people's courts and local committees.

- **The National Coalition:** JP forged an alliance uniting diverse opposition parties: the Bharatiya Jana Sangh, Congress (O), Socialist Party, and Bharatiya Lok Dal.

Feature	Gujarat Navnirman (Jan 1974)	Bihar Movement (March 1974)
Initial Trigger	20% hike in student hostel food bills.	Rising food prices, unemployment, corruption.
Primary Leader	Students; backed by Morarji Desai.	Jayaprakash Narayan (JP).
Core Strategy	Indefinite fast by Morarji Desai.	Call for **Total Revolution** (**Sampoorna Kranti**).
Immediate Outcome	Assembly dissolved; fresh polls held in June 1975.	Expanded into a nationwide anti-Indira political crusade.

The Catalyst: The Allahabad Verdict & 25 June 1975

The confrontation reached its boiling point in June 1975, when a judicial ruling struck directly at Indira Gandhi's seat in Parliament.

- **The Allahabad High Court Judgment (12 June 1975):**
  - **The petition:** Socialist leader **Raj Narain**, who had lost to Indira Gandhi in the Rae Bareli constituency in 1971, filed an election petition alleging corrupt electoral practices.
  - **The historic ruling:** Justice **Jagmohan Lal Sinha** of the Allahabad High Court found Indira Gandhi guilty of two electoral corrupt practices:
    - Utilizing government servants (notably officer on special duty Yashpal Kapoor) before his official resignation took effect.
    - Using state government machinery and police to erect election rostrums and supply electricity for loudspeakers.
  - **The verdict:** Justice Sinha declared Indira Gandhi's 1971 election **null and void**, unseating her from the Lok Sabha and barring her from contesting elections for six years!
- **The Supreme Court Conditional Stay (24 June 1975):**
  - Indira Gandhi appealed to the Supreme Court. On 24 June 1975, the vacation judge, Justice **V.R. Krishna Iyer**, granted a **conditional stay**:
    - Indira Gandhi could continue to function as Prime Minister.
    - However, she was debarred from taking part in Lok Sabha proceedings and could not cast a vote in parliamentary divisions until the full appeal was decided.
- **The Rally at Ramlila Maidan (25 June 1975):**
  - JP organized a massive, record-breaking opposition rally at Delhi's Ramlila Maidan.
  - He demanded Indira Gandhi's immediate resignation on moral and constitutional grounds.

- JP announced a nationwide Satyagraha starting 29 June and famously appealed to the **police, the civil service, and the armed forces** to obey the Constitution and refuse to comply with illegal or unconstitutional executive orders.
- The ruling party interpreted this speech as an open incitement to mutiny and rebellion.

- **The Midnight Decree:**
  - On the night of **25 June 1975**, Prime Minister Indira Gandhi advised President **Fakhruddin Ali Ahmed** to proclaim a National Emergency under **Article 352** of the Constitution on the grounds of **"internal disturbance"**.
  - The Cabinet was not consulted beforehand; ministers were informed at a hasty cabinet meeting called at 6:00 AM on 26 June, hours after the proclamation was already signed.
  - Electricity to newspaper printing presses in Delhi was cut off at midnight, and police rounded up top opposition leaders across the country before dawn.

The Emergency Regime (1975–1977): Dimensions and Excesses

For 21 months (25 June 1975 to 21 March 1977), India ceased to operate as a constitutional democracy. The regime wielded sweeping legal and extra-legal powers.

- **Suspension of Constitutional Protections:**
  - **Fundamental Rights frozen:** Article 14 (Equality), Article 19 (Freedoms of speech, assembly, association), and Article 21 (Right to life and liberty) were suspended.
  - **Preventive detention abuse:** The government deployed the **Maintenance of Internal Security Act (MISA)** and DIR to arrest political opponents without trial. Approximately **111,000 citizens** were detained.
  - **The ADM Jabalpur Infamy (April 1976):**
    - Detainees approached High Courts via habeas corpus petitions. Several High Courts ruled that even during an Emergency, citizens retained the right to challenge illegal detention.
    - The Indira government appealed to the Supreme Court. In **ADM Jabalpur v. Shivkant Shukla (1976)**, a 4:1 majority (led by CJI A.N. Ray) disgracefully ruled that during Emergency, citizens had no locus standi to approach courts even if detention was unlawful or malicious.
    - **The lone heroic dissent:** Justice **H.R. Khanna** courageously dissented, upholding that the state cannot deprive a person of life or liberty without the authority of law. (For this dissent, Khanna was superseded for the post of CJI in 1977 and resigned).
- **Press Censorship & Resistance:**
  - **Pre-censorship introduced:** Newspapers were prohibited from printing any material without prior clearance from government censors.
  - **Protesting editors:** The **Indian Express** and **The Statesman** left their editorial columns completely blank to protest censorship.
  - **Brave publications:** Independent journals like **Himmat**, **Sadhana**, and **Seminar** chose to shut down permanently rather than submit to government scrutiny.

- **Protest through honours:** Eminent writers returned their state honours — Kannada literary giant **Shivarama Karanth** returned his Padma Bhushan, and renowned Hindi novelist **Phanishwarnath Renu** surrendered his Padma Shri.

- **Extra-Constitutional Power — Sanjay Gandhi:**
  - Prime Minister's younger son, **Sanjay Gandhi**, exercised immense executive control despite holding no official position in the cabinet or government.
  - Sanjay launched his controversial **5-Point Programme**: promoting family planning, tree plantation, dowry eradication, adult literacy, and slum clearance.
  - **Coercive Sterilisations:** Bureaucrats and schoolteachers were given arbitrary vasectomy quotas; over 8 million people were subjected to forced sterilisations, targeting the poor and minorities.
  - **Turkman Gate Demolitions (April 1976):** Municipal bulldozers demolished historic settlements around Delhi's Turkman Gate, rendering thousands homeless; police fired on protesting residents, killing dozens.
- **The 42nd Constitutional Amendment Act (1976) — The "Mini-Constitution":**
  - Enacted by a captive Parliament while opposition leaders were in jail:
    - **Preamble altered:** Inserted the words **"Socialist, Secular, and Integrity"** into the Preamble.
    - **Extended legislative tenure:** Increased the term of the Lok Sabha and State Legislative Assemblies from **5 years to 6 years**.
    - **Curtailed Judiciary:** Deprived the Supreme Court and High Courts of their power to review constitutional amendments.
    - **Fundamental Duties:** Added Part IVA (Article 51A) prescribing 10 Fundamental Duties for citizens.

The 1977 General Elections & The Janata Restoration

In January 1977, confident that opposition resistance had broken and her popularity was intact, Indira Gandhi unexpectedly announced General Elections for March 1977 and released political prisoners.

- **The Birth of the Janata Party:**
  - Major non-communist opposition parties merged immediately to prevent vote-splitting: **Congress (O)**, **Bharatiya Jana Sangh**, **Bharatiya Lok Dal (BLD)**, and the **Socialist Party**.
  - Guided by Jayaprakash Narayan, they adopted a single common election symbol (the BLD's farmer carrying a plough) and fought as the **Janata Party**.
  - Senior Congress minister **Jagjivan Ram** resigned from Indira's cabinet and formed the **Congress for Democracy (CFD)**, which allied with the Janata Party.
- **The 1977 Election Verdict — A Democratic Referendum:**
  - Voters treated the election as a direct referendum: **Democracy versus Dictatorship**.
  - **The Northern Sweep:** The Congress was completely annihilated across North India, failing to win a single seat in Uttar Pradesh, Bihar, Punjab, Haryana, or Delhi.

- **Personal defeats:** Both Prime Minister **Indira Gandhi** (in Rae Bareli) and **Sanjay Gandhi** (in Amethi) suffered crushing defeats.
- **The numbers:** Janata Party + allies won **330 seats** (Janata alone won 295 seats). Congress was reduced from 352 seats to just **154 seats**, retaining support primarily in the Southern states (Andhra Pradesh, Karnataka, Kerala, Tamil Nadu) where Emergency excesses were far less acute.
- **First Non-Congress Prime Minister:** In March 1977, **Morarji Desai** took oath as India's first non-Congress Prime Minister, heading a coalition with **Charan Singh** and **Jagjivan Ram** as Deputy Prime Ministers.

Constitutional Act	Passed In	Key Changes / Significance
38th Amendment	1975 (Emergency)	Barred judicial review of the proclamation of Emergency by the President.
39th Amendment	1975 (Emergency)	Placed election of President, Vice-President, and Prime Minister beyond judicial challenge.
42nd Amendment	1976 ("Mini-Constitution")	6-year Lok Sabha term; added "Secular, Socialist, Integrity"; trimmed judicial review.
44th Amendment	1978 (Janata Government)	Replaced "internal disturbance" with "armed rebellion"; Art 20 & 21 non-suspendable; restored 5-year term.

Lessons of the Emergency & Rise of Civil Liberties

- **Institutional Vulnerability:** The Emergency revealed that the bureaucracy, the police, and the higher judiciary could be easily subverted and bullied into compliance by a determined executive.
- **The Shah Commission (May 1977):**
  - The Janata government appointed a commission of inquiry headed by retired Supreme Court Chief Justice **J.C. Shah**.
  - Found widespread instances of illegal arrests, press censorship abuses, custodial tortures, and confirmed that the Cabinet was never consulted before the midnight proclamation.
- **The 44th Constitutional Amendment (1978):**
  - Dismantled the authoritarian features introduced by the 42nd Amendment.
  - Substituted the vague term **"internal disturbance"** with **"armed rebellion"** as the only valid internal ground for Article 352.
  - Made written recommendation by the Union Cabinet mandatory for declaring an Emergency.

- Mandated that the Right to Life and Personal Liberty (Article 21) and protection against conviction (Article 20) **cannot be suspended** under any circumstances, even during a declared Emergency.

- **The Human Rights Awakening:**
  - The suppression of democratic freedoms gave birth to India's modern human rights movement:
    - **People's Union for Civil Liberties (PUCL)** founded under Jayaprakash Narayan's inspiration.
    - **People's Union for Democratic Rights (PUDR)**.
  - Indian citizens, the press, and civil society emerged from the 21-month nightmare with an unyielding commitment to constitutional democracy.

The Whole Chapter in One Picture

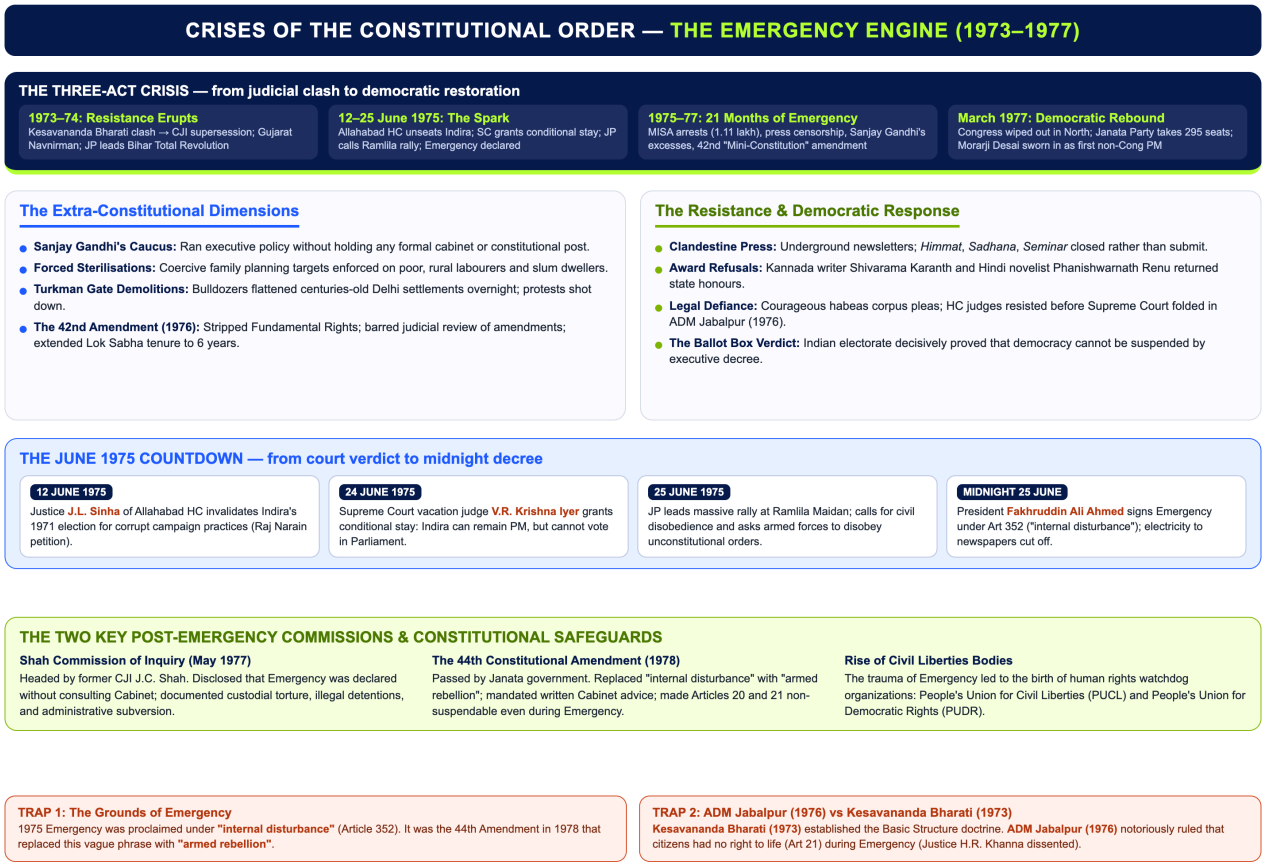


Figure 1: The Emergency Engine (1973–1977): From economic distress, judicial confrontation, and the Allahabad HC verdict to the 21-month Emergency, Sanjay Gandhi's excesses, and the Janata Party's democratic restoration in 1977.



Figure 2: Complete Chapter Mindmap: Prelude and economic strain, Navnirman and Bihar movements, the Allahabad judgment spark, Emergency dimensions, the 1977 electoral rout, and permanent constitutional safeguards.

Practice Questions (Exam Pattern)

Ten questions designed in authentic CUET UG single-correct style. The official marking scheme awards +5 for each correct answer and deducts −1 for every incorrect answer.

Q1. The nationwide 20-day All-India Railway Strike in May 1974 was organized and led by which prominent trade union leader?

(A) A.K. Gopalan
(B) George Fernandes
(C) Morarji Desai
(D) Charan Singh

Q2. In April 1973, which judge was appointed as the Chief Justice of India by superseding three senior Supreme Court judges?

(A) Justice J.M. Shelat
(B) Justice A.N. Ray
(C) Justice H.R. Khanna
(D) Justice V.R. Krishna Iyer

Q3. The Navnirman student movement of January 1974 against rising food prices and corruption occurred in which state?

(A) Bihar
(B) Gujarat
(C) Uttar Pradesh
(D) Punjab

Q4. Who gave the clarion call for "Total Revolution" (Sampoorna Kranti) during the Bihar student agitation of 1974?

(A) Dr. Rammanohar Lohia
(B) Jayaprakash Narayan
(C) Acharya Narendra Deva
(D) K. Kamaraj

Q5. On 12 June 1975, which High Court judge invalidated the 1971 election of Prime Minister Indira Gandhi on grounds of corrupt electoral practices?

(A) Justice J.L. Sinha
(B) Justice A.N. Ray
(C) Justice P.N. Bhagwati
(D) Justice J.C. Shah

Q6. The National Emergency on the night of 25 June 1975 was proclaimed by President Fakhruddin Ali Ahmed under which constitutional provision?

(A) Article 356 on grounds of failure of constitutional machinery
(B) Article 360 on grounds of financial emergency
(C) Article 352 on grounds of "internal disturbance"
(D) Article 352 on grounds of "armed rebellion"

Q7. Which newspaper chose to protest executive pre-censorship during the Emergency by leaving its editorial columns completely blank?

(A) The Hindu
(B) The Indian Express
(C) The Times of India
(D) National Herald

Q8. The controversial 42nd Constitutional Amendment Act of 1976 extended the term of the Lok Sabha and State Legislative Assemblies to:

(A) 5 years
(B) 6 years
(C) 7 years
(D) 4 years

Q9. In the March 1977 General Elections, which newly formed umbrella political party defeated the ruling Congress party to form India's first non-Congress central government?

(A) Swatantra Party
(B) Bharatiya Jana Sangh
(C) Janata Party
(D) Congress for Democracy

Q10. Which Constitutional Amendment Act replaced the term "internal disturbance" with "armed rebellion" and prohibited the suspension of Article 21 during an Emergency?

(A) 42nd Amendment Act (1976)
(B) 44th Amendment Act (1978)
(C) 52nd Amendment Act (1985)
(D) 61st Amendment Act (1988)

Detailed Solutions

Sol. Q1. George Fernandes led the National Coordination Committee for Railwaymen's Struggle in May 1974, bringing the entire railway network to a standstill for 20 days.

Answer: (B)

Sol. Q2. Justice A.N. Ray was appointed Chief Justice of India in April 1973, superseding three senior judges (Shelat, Hegde, and Grover) who had ruled against the government in the Kesavananda Bharati case.

Answer: (B)

Sol. Q3. The Navnirman Movement took place in Gujarat in early 1974, triggered by hostel mess fee hikes, leading to Morarji Desai's fast and the dissolution of the state assembly.

Answer: (B)

Sol. Q4. Jayaprakash Narayan (JP) accepted the leadership of the Bihar student movement and issued the historic call for "Total Revolution" (Sampoorna Kranti) across all walks of society.

Answer: (B)

Sol. Q5. Justice Jagmohan Lal Sinha of the Allahabad High Court delivered the landmark verdict on 12 June 1975 in the election petition filed by Raj Narain.

Answer: (A)

Sol. Q6. The 1975 Emergency was proclaimed under Article 352 on the ground of "internal disturbance". "Armed rebellion" was only substituted later by the 44th Amendment in 1978.

Answer: (C)

Sol. Q7. The Indian Express and The Statesman famously registered silent defiance against state censorship by publishing blank editorial columns.

Answer: (B)

Sol. Q8. The 42nd Constitutional Amendment Act of 1976 extended the tenure of the Lok Sabha and Vidhan Sabhas from 5 years to 6 years (later restored to 5 years by the 44th Amendment).

Answer: (B)

Sol. Q9. The Janata Party was formed in early 1977 by the merger of Congress (O), Jana Sangh, Bharatiya Lok Dal, and Socialists, winning 295 seats and sweeping to power under Morarji Desai.

Answer: (C)

Sol. Q10. The 44th Constitutional Amendment Act of 1978 enacted by the Janata government introduced vital safeguards, including substituting "armed rebellion" for "internal disturbance" and making Article 20 and 21 inviolable.

Answer: (B)

Wrong-Answer Clinic — the one-line corrections

If you answered...	Your slip was...	The corrected rule, in one line
Q2 option C	Confusing the dissenter with the appointee	Justice H.R. Khanna dissented in ADM Jabalpur (1976); Justice A.N. Ray was the judge promoted in 1973.
Q4 option A	Attributing Total Revolution to Lohia	Lohia propounded "Non-Congressism" (1967); JP called for "Total Revolution" (1974).
Q6 option D	Using post-1978 terminology	1975 Emergency ground was "internal disturbance"; "armed rebellion" was introduced by the 44th Amendment.
Q8 option C	Exaggerating the extension	The 42nd Amendment increased the legislative term by exactly one year: from 5 to 6 years.
Q10 option A	Flipping the 42nd and 44th Amendments	42nd Amendment (1976) imposed restrictions; 44th Amendment (1978) restored democratic rights.

© OurMocks · www.ourmocks.com · CUET UG Political Science · Crises of the Constitutional Order · 2027 cycle